

Renewal Master Subscription Agreement — DRAFT

Customer: Apex Industries Sdn Bhd · Effective Date: 2026-10-01 · Term: 36 months · DRAFT FOR DISCUSSION

1. Scope of Service

Vendor shall provide the Subscription Services as set out in Schedule 1 (Service Description) and the Professional Services Hours as set out in Schedule 2. Software-as-a-Service delivery model on Vendor's multi-tenant cloud.

2. Subscription Fees

2.1 Annual Subscription Fee — Year 1: MYR 4,968,000. Year 2: MYR 5,366,000 (8% increase). Year 3: MYR 5,795,000 (8% increase).

2.2 Seat counts as per Schedule 1. Customer may add seats mid-term at the same per-seat price (true-up at renewal). Mid-term seat reductions not permitted.

2.3 Invoicing — annually in advance. Payment terms net 45 days. Currency MYR.

3. Service Levels

3.1 Availability — 99.95% per calendar month, measured per workload.

3.2 Support — Premium 24x7. P1 response 15 min, P2 30 min, P3 4 hours.

3.3 Service credits — 10% of monthly fees per 0.1% below SLA, capped at 25% of monthly fees per month.

4. Term & Termination

4.1 Initial term 36 months from Effective Date.

4.2 Termination for convenience — customer may terminate with 12 months' written notice; no refund of pre-paid annual fees.

4.3 Termination for cause — material breach not cured within 30 days; refund pro-rata of pre-paid unused term.

5. Data, Privacy & Security

5.1 Customer data remains the property of Customer. Vendor processes data only as Customer's data processor.

5.2 Data residency — ASEAN region. Vendor warrants compliance with PDPA 2010 (Malaysia).

5.3 Security certifications — ISO 27001, SOC 2 Type II maintained throughout term.

6. Outstanding / To-Be-Discussed

- Customer requesting 2-year initial term (instead of 3) — DISCUSSION POINT
- Customer requesting 4% (instead of 8%) annual escalator — DISCUSSION POINT
- Customer requesting mid-term seat REDUCTIONS allowed — DISCUSSION POINT
- Vendor proposing seat true-up at renewal — pending Customer acceptance
- Auto-renewal clause — to be added if 3-year term accepted

7. Signatures (placeholder)

Customer: VP Operations, Apex Industries Sdn Bhd · Vendor: Account Executive, Zava Group · Witnessed
by Legal